

M/S Ratan Housing Development Ltd. v. Kanpur Electricity Supply Company And Others

Allahabad High Court · Division Bench · 25 October 2010 · WRIT - C No. 63601 of 2010 · **Writ petition dismissed; review application also dismissed.**

HEADNOTE

A developer's writ seeking to restrain electricity connections in the landowner's share of flats for want of the developer's NOC was dismissed. Applications for supply fall under Clause 4.4 of the U.P. Electricity Supply Code, 2005, which does not make a developer's no-objection certificate a mandatory precondition. Review of the dismissal was later refused.

FACTUAL SUMMARY

The petitioner company, a developer, had agreed with landowner Kamal Raheja to construct 31 flats, of which 15 were to be given to Raheja. The writ concerned electricity connections in those 15 flats. The developer contended that Kanpur Electricity Supply Company could not grant connections without its no-objection certificate, and sought a mandamus and quashing of an order dated 14 October 2010 rejecting that request. The licensee's counsel submitted that applications for supply would be considered under Clause 4.4 of the U.P. Electricity Supply Code, 2005.

REUSABLE CONSTRUCTIONS

1. Clause 4.4 of the U.P. Electricity Supply Code, 2005 does not make a developer's no-objection certificate a mandatory precondition to grant of an electricity connection. ¶ [unnumbered](#)
2. A developer cannot obtain a mandamus restraining the licensee from considering supply to flats in the landowner's share merely for want of the developer's NOC. ¶ [unnumbered](#)

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

developer NOC not a mandatory condition for new connection

HOLDING

Mandamus to restrain grant of electricity connections in the landowner's share of flats without the developer-petitioner's NOC was refused. Clause 4.4 of the U.P. Electricity Supply Code, 2005 does not impose a mandatory condition of a developer's no-objection certificate before a connection can be granted. The writ, including the prayer to quash the 14.10.2010 rejection of the petitioner's request, was dismissed. ¶ [unnumbered](#)